

25STCV08516 25STCV08516

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-13

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Case Number: 25STCV08516 Hearing Date: August 13, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ARMEN HOVHONASIAN,

Plaintiff,

vs.

MERCEDES-BENZ USA,

LLC, et al.,

Defendants.

Case No.:

25STCV08516

Hearing Date:

August 13, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

MERCEDES-BENZ USA, LLC'S MOTION FOR JUDGMENT ON THE PLEADINGS

Background

On March 24, 2025,

Plaintiff Armen Hovhonasian ("Plaintiff") filed this lemon law action against Defendants Mercedes-Benz USA, LLC ("MBUSA") and Keyes European, alleging six causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, (5) negligent repair, and (6) fraudulent inducement - concealment.

MBUSA now moves for judgment on the pleadings as to the second, third, and sixth causes of action of the complaint. Plaintiff opposes. MBUSA did not reply.

Legal

Standard

A

defendant may move for judgment on the pleadings when the "complaint does not state facts sufficient to constitute a cause of action against the defendant." (Code Civ. Proc., § 438, subds. (b)(1) and (c)(1)(B)(ii).) "A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. [Citations.] Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999, citations omitted.)

The

standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer: that under the state of the pleadings, together with matters that may be judicially noticed, it appears

that a party is entitled to judgment as a matter of law. ((Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.)

The court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” ((Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

Discussion

MBUSA

moves for judgment on the pleadings as to Plaintiff’s second and third causes of action because they fail to state facts sufficient to support a cause of action and fail to meet the particularity standard. MBUSA also moves for judgment on the pleadings as to Plaintiff’s sixth cause of action for fraudulent inducement - concealment for failing to state facts sufficient to support a cause of action, failing to meet the heightened pleading standard for fraud claims, and being barred by the economic loss rule.

A. Allegations of the Complaint

Plaintiff alleges that “[o]n or about February 24, 2020, Plaintiff entered into a warranty contract with Defendant MBZ regarding a 2020 Mercedes Benz C-Class, ... which was manufactured and or distributed by Defendant MBZ.” (Compl., ¶ 7.) Plaintiff alleges that “[t]he warranty contract contained various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc.” (Compl., ¶ 8.) Plaintiff further alleges that “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, engine defects, transmission defects, electrical defects; among other defects and non-conformities,” and these “defects/nonconformities substantially impair the use, value, or safety of the Vehicle.” (Compl., ¶¶ 12-13.)

B.

Second and Third Causes of Action for Violation
of Civil Code Section 1793.2, Subdivisions (b) and (a)(3)

MBUSA

asserts that “[a] key deficiency in the Complaint is that Plaintiff has failed to plead material facts with any certainty, let alone with the clarity and precision required by law to provide sufficient notice of Plaintiff’s statutory claims and therefore, Plaintiff fail to state sufficient facts to support Plaintiff’s causes of action and the Complaint is uncertain. Statutory claims are subject to heightened pleading above and beyond mere fact pleading.” (Mot., 5:26-6:2.) In support of this contention, MBUSA cites *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790, where the Supreme Court stated that “the general rule [is] that statutory causes of action must be pleaded with particularity.”

Civil Code section 1793.2, subdivision (b), states, inter alia, that “[w]here those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.”

For

Plaintiff’s second cause of action, MBUSA asserts that “Plaintiff has failed to plead material facts with any certainty, let alone with the clarity and precision required by law to provide sufficient notice of Plaintiff’s claim for violation of Cal Civ. Code § 1793.2(b). The Complaint fails to even set forth a history or specific description of the repair history and instead states in a conclusory fashion without any factual support.” (Mot., 6:21-24.) MBUSA further contends that “[m]issing from the Complaint are allegations relating to the nature of the concerns raised at the service visits referenced, when those service visits occurred, and during which specific services visits the vehicle was in repair for 30 days or more on a single visit. Plaintiff also fails to allege what, if any damages Plaintiff incurred as a result of any alleged ‘delay’ in repair and when these damages were incurred.” (Mot., 7:1-5.)

Civil Code section 1793.2, subdivision (a)(3), provides that “[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall ... [m]ake available to authorized service and repair facilities sufficient service literature and

replacement parts to effect repairs during the express warranty period.”

As

for Plaintiff’s third cause of action, MBUSA asserts that “Plaintiff’s third cause of action for violation of §1793.2(a)(3) alleges that Defendant failed to make parts and literature available during the warranty period. (Compl. ¶ 39.) This claim suffers from the same deficiencies as Plaintiff’s second cause of action[,] ... [it] is a conclusory allegation that fails to include any particularized facts that would provide insight into the basis of Plaintiff’s claim such as what parts or literature MBUSA failed to provide or when the alleged failure to provide these items occurred.” (Mot., 7:7-16.)

In

opposition, Plaintiff asserts that “Mercedes’s Motion for Judgment on the Pleadings argues that the complaint is insufficient to acquaint Mercedes with the nature, source, and extent of the cause of action. (See Def.’s Memo, p. 7, ln. 1.) Plaintiff has alleged ultimate facts that they are buyers of consumer goods (a car), Mercedes provided a warranty, and then failed to honor that warranty. (Complaint, ¶¶ 7-17.) The simple fact is that this is a lemon law claim for repairs made to a specific vehicle... This is sufficient to allow Mercedes to review its records and prepare its defense. Notably, the Legislature recently amended the Code of Civil Procedure to impose on Mercedes a duty to provide Plaintiff with the exact information Mercedes claims is lacking in the complaint. (See Code Civ. Proc., § 871.26, subd. (h)(7) & (h)(11).) Mercedes points to no authority stating that Song-Beverly claims must be pled in such exact detail, particularly where Mercedes has all this information itself.” (Opp., 4:8-18.)

In

the complaint, as noted above, Plaintiff alleges that he purchased a vehicle manufactured by MBUSA with an express warranty, but the vehicle has substantial defects, making it of no value. Specifically, under Plaintiff’s second cause of action, Plaintiff alleges that “[a]lthough Plaintiff presented the Subject Vehicle to Defendant MBZ’s representative in this state, Defendant MBZ and its representative failed to commence the service or repairs within a reasonable time and failed to service or repair the Subject Vehicle so as to conform to the applicable warranties within 30 days.” (Compl., ¶ 34.) Plaintiff also alleges that “Plaintiff did not extend the time for completion of repairs beyond the 30-day requirement,” and “Plaintiff has rightfully rejected and/or

justifiably revoked acceptance of the Vehicle and has exercised a right to cancel the purchase.” (Compl., ¶¶ 34, 36.) As for Plaintiff’s third cause of action, he alleges that “Defendant MBZ failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Compl., ¶ 39.) Plaintiff also alleges that “Defendant MBZ knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant MBZ failed to take any action to correct its failure to comply with the law.” (Compl., ¶ 40.) Based on the foregoing allegations, the Court finds that Plaintiff sufficiently alleged facts with enough particularity to apprise MBUSA of the causes of action he brings against them. Accordingly, the motion for judgment on the pleadings as to the second and third causes of action is denied.

C.

Sixth Cause of Action for Fraudulent

Inducement - Concealment

MBUSA moves for judgment on the pleadings on the grounds that Plaintiff’s sixth cause of action for fraudulent inducement – concealment is insufficiently alleged because Plaintiff failed to plead fraud with the requisite specificity.

“[T]he elements of an

action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Marketing West, Inc. v. Sanyo Fisher (USA) Corp. (1992) 6 Cal.App.4th 603, 612-613.) Less specificity is required if it appears

from the nature of allegations that the defendant must necessarily possess full information, or if the facts lie more in the knowledge of opposing parties.¿(Alfaro v. Community Housing Improvement System & Planning Assn., Inc.¿(2009) 171 Cal.App.4th 1356, 1384-1385 (Alfaro).)

As to specificity, MBUSA asserts that Plaintiff’s allegations fail, because “there are no factual allegations

alleged with the requisite specificity to satisfy any element of Plaintiff's fraud claim, including that Plaintiff's specific vehicle suffered from any alleged defect at the time of the sale, that MBUSA was aware of any such defect in the Plaintiff's vehicle at the time of the sale, that MBUSA had a duty to disclose any such defect to the extent it had any knowledge of one, that Plaintiff justifiably relied on the alleged omissions, or that that Plaintiff was damaged." (Mot., 8:5-10.) Moreover, MBUSA contends that "Plaintiff's fraud claim is based upon an alleged 'Engine Defect' that is allegedly present in Plaintiff's vehicle. (Compl. ¶¶ 51-80.) However, Plaintiff asserts a number of vague, conclusory statements to support this claimed 'Engine Defect', rather than specific allegations detailing the particularized circumstances that give rise to Plaintiff's fraud claim arising from Plaintiff's purchase of the subject vehicle. Indeed, Plaintiff makes no specific allegations as to instances in which this is the case, and instead relies solely on this cursory allegation as 'proof' that MBUSA fraudulently concealed these alleged defects." (Mot., 9:2-9.)

In opposition, Plaintiff contends that he alleges fraud with the requisite specificity because when fraud occurs through non-disclosure, it is not practical to allege facts for something that did not happen. (Alfaro, supra, 171 Cal.App.4th at p. 1384 ["How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"].) Instead, such details, in the context of a fraudulent concealment claim, "are properly the subject of discovery, not demurrer." (Id., at pp. 1384-1385.) Specifically, Plaintiff contends that he "alleged (1) misrepresentation/concealment, (2) knowledge of falsity, (3) intent to induce reliance, (4) justifiable reliance, and (5) damages." (Opp., 5:23-25.) However, in the complaint, Plaintiff only includes general, boilerplate assertions. (See e.g., Compl., ¶¶ 54, 69 ["Plaintiff is informed and believes, and based thereon alleges, that Defendant MBZ has refused to adequately repair certain defects and problems during the warranty period, resulting in owners like Plaintiff being stuck in the middle of the road and having to incur lodging expenses, as well as related repair to the defect," and "[t]he Engine Defect was not known or reasonably discoverable by the Plaintiff before purchase and Plaintiff did not know about MBZ's fraudulent conduct alleged herein until Plaintiff made a reasonable number of attempts to repair the Engine Defect."].)

Although Plaintiff pleads general facts that fit the required elements of a fraud cause

of action, they are not pled with the specificity that a fraud cause of action requires. Even under Alfaro, a plaintiff must still plead the specific misrepresentations or omissions they relied on that induced their purchase, which, here, Plaintiff failed to do so. Accordingly, the motion for judgment on the pleadings is granted as to the sixth cause of action, with leave to amend.

In
light of the ruling on the specificity issue, the Court need not address the other issues raised by MBUSA in the motion for judgment on the pleadings.

Conclusion

Based on the foregoing, MBUSA's
motion for judgment on the pleadings as to the second and third causes of action is DENIED. MBUSA's motion for judgment on the pleadings as to the sixth cause of action is GRANTED, with leave to amend.

MBUSA is ordered to give
notice of this Order.

DATED: August
13, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court